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# Senate of Virginia Floor Session, Friday, January 16, 2026

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**[00:00:29]** This is the Senate of Virginia, Richmond, Virginia, Chamber.

**[00:02:10]** This is the Senate of Virginia, Richmond, Virginia, Chamber.

**[00:05:16]** You know live Senate video is now available at youtube.com slash at Senate of Virginia.

**[00:05:47]** Senate of Virginia, Richmond, Virginia.

**[00:09:28]** This is the Senate of Virginia, Richmond, Virginia, Chamber.

**[00:10:57]** No live Senate video is now available at youtube.com slash at Senate of Virginia.

**[00:12:05]** This is the Senate of Virginia, Richmond, Virginia, Virginia, Richmond, Virginia, Chamber.

**[00:17:27]** Live Senate video is now available at youtube.com slash at Senate of Virginia, Virginia, Richmond, Virginia, Chamber.

**[00:21:40]** Senate of Virginia, Richmond, Virginia.

**[00:22:31]** As you know, live Senate video is now available at youtube.com slash at Senate of Virginia.

**[00:24:40]** Virginia, Richmond, Virginia.

**[00:26:27]** Chamber, this is the Senate of Virginia, Richmond, Virginia.

**[00:28:49]** Live Senate video is now available at youtube.com slash at Senate of Virginia.

[00:31:00] Virginia, Richmond, Virginia.

[00:32:57] This is the Senate of Virginia, Richmond, Virginia.

[00:35:07] The Senate will come to order.

[00:36:51] The Senators will take their seats. Those persons not entitled to the privileges of the floor will please retire to the gallery. Good morning, Senators. Good morning, guests.

[00:37:07] The Senators and those in attendance, if you are able, please rise. We'll be led in prayer this morning by the very Reverend Proto-Presbider, Nicholas G.

[00:37:27] Bacallus, Dean of the Cathedral since Constantine and Helen Greek Orthodox Cathedral in Richmond. Following the prayer, if everyone will please remain standing, and we will be led in the Pledge of Allegiance to the Flag of the United States of America by our Senate page, Nicholas Pekarski of Fairfax.

[00:37:53] May we bow our heads in prayer. Gracious Lord, as we once again prepare for change in our governing bodies, we pray for a smooth transition as has been our tradition in the Commonwealth.

[00:38:10] We thank you for those who devoted their time and talent in serving our state, and And ask for your guidance as they enter the next chapter of their lives. We pray for those who will be assuming new positions, as well as for those who are returning, that you will guide them in the discussions and decisions that will best serve the citizens whom they represent.

[00:38:34] Enlighten them with an understanding of the issues. Help them to listen to all points of view and to respect and learn from one another. Bless the esteemed members of the Senate, their staff, support staff throughout the building and their families as they offer their service for the continued progress and governance of our Commonwealth for you are the one who bestows abundant blessings upon us for which we express our Thanksgiving and

[00:39:00] gratitude amen I pledge allegiance to the flag of the United States of America and to the Republic for which it stands

[00:39:15] one nation under God indivisible with liberty and justice for all Clark will

[00:39:53] Call the roll. All those present, please vote aye. Clerk will close the roll. You have a quorum, Madam President. Senate Journal, Thursday, January 15, 2026.

[00:40:09] The senator from Richmond City, Senator Hashmi, moves that the reading of the journal be waived.

[00:40:29] Those in favor of waiving the reading of the journal will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Does any senator desire to change their vote? The clerk will close the roll.

[00:40:49] Ayes 35, noes 3. Ayes 35, noes 3. The reading of the journal is waived. Clerk will report any communications from the House of Delegates.

[00:41:07] Chair calls on the senator, Senator Saraville, the senator from eastern Fairfax County. Good morning, Madam President. Good morning. Madam President, I'd move to waive the reading of the communication from the House of Delegates. the question is shall the reading of the communication from the house of delegates be waived those in favor of waving the reading will record their votes aye those

opposed no are the senators ready to vote have all the senators voted does any senator desire to change their vote the clerk will close the roll it's 35 nose three eyes 35 nose three the reading of the communication

[00:41:45] from the house of delegates is waived clerk will report any communications from the governor we do not have any Madam President. Senator Sorovell again the senator from Eastern Fairfax County. Thank you Madam President. I move that we grant the privileges of the floor to a certain distinguished person. The question is shall the rules be suspended and the privilege privileges of the floor granted to a distinguished person? All in favor

[00:42:24] of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Of all the senators voted does any senator desire to change their vote the clerk will close the roll ayes 39 no zero the rules are suspended the privileges of the floor are granted chair now recognizes senator lock the senator from hampton for the purpose of presenting a distinguished guest thank you madam president it is my honor to uh rep to introduce

[00:43:00] the honorable robert c bobby scott uh to the floor uh where he sat on this very floor i'm not going to even mention the number of years ago congressman but it is my honor to have him join us here today and i am truly honored to serve in the district that congressman scott previously represented um and so please welcome congressman robert c bobby scott welcome congressman

[00:43:34] have arrived at the time in our morning hour when again we will discover who all of you beautiful

[00:44:14] people are in your senate gallery we're so glad to see you and the normal procedure is that your senator will rise and tell us who you are and if you will rise at that time but hold your applause until i have officially recognized you and then we will applaud together i don't see many green sheets today but we are going to recognize our our very reverend proto presbyter who so gracefully

[00:44:48] prayed and so with that i do now call on senator praskarsky the senator from western fairfax county thank you madam president i do rise for that introduction the senator may continue thank you it is my pleasure to welcome the very reverend protoperz viter nicolas g bakalis if you stand please um who is no stranger to this chamber has been here multiple times before and as many of us

[00:45:18] are he is a virginian with true and deep immigrant roots from greece his grandparents actually immigrated to the commonwealth from greece over 100 years ago his parents are graduates of the university of virginia as is the father he furthered his education at saint vladimir's orthodox seminary and the ecumenical institute in boise switzerland while serving as director of youth ministries in charlotte north carolina he met and married his wonderful wife vivian

[00:45:57] kuchel and they're blessed with two children and five grandchildren in 1976 he began a 20-year ministry at the holy trinity church in roanoke the next stop was greek orthodox cathedral in Richmond where he retired recently after 30 years of service. And I'm glad that I was able to come worship before his retirement in his wonderful church. His bishop appointed him vicar for central and southern Virginia where he oversaw 10 Greek Orthodox parishes, a few of whom do not

[00:46:35] have full-time priests. And I hope that in his retirement time, he will get to take lots of drives in the countryside, which he likes to do, and spend time at the Chesapeake Bay, which is one of his favorite pastimes. And with that, I hope you will join me in welcoming the Father this morning. Thank you so very

much again for coming. It's so wonderful to see you, and thank you again for your prayer. As you know, we go about the business of the people. We absolutely need the

[00:47:12] Lord's guidance in how to do this. So thank you. Thank you for the sacrifices that you've, we've heard made. And I know when the Senator said that your parents came a hundred years ago, normally it's a joke, but it's true in this instance, a hundred years ago, they came to this great country.

[00:47:30] Senators, let us give the hymn the warm welcome of his Senate. The Senator from Rockingham, Senator Obenshain.

[00:47:48] Madam President, I rise to request a leave of absence for my seatmate, the senator from Washington County, who's away from the Capitol, and pressing personal business. Thank you, Senator. The journal will so reflect.

[00:48:11] Is there any other business to come for the morning hour? Hearing none. Resolutions, petitions, and bills are in order. The clerk will call the calendar.

[00:48:34] Senators, as we await copying of certain material to put in front of you, we will be

[00:49:15] temporarily at ease all right well please take their seats work will call the

[01:13:15] calendar Senate calendar for Friday January the 16th 2026 regular calendar has joint resolutions on third reading has joint resolution one reported from the committee on privileges and elections and there are floor amendments senator Rouse good morning madam president good morning senator and I just wanted to say good morning to you apparently because I'm supposed to call

[01:13:53] on the senator over here first yes Senator Durant the senator from Stafford house joint resolution one year a floor amendment thank you madam president I move to waive the reading question is shall the reading of the Durant floor amendment be waived those in favor of waiving the reading will say aye those opposed no the reading of the floor amendment is

[01:14:25] waived senator Durant the amendment and would you like to speak to it we spoke on this on this amendment yesterday and so I'm you know I I would speak to it again at that yeah to reiterate that the importance of it and of protecting

[01:15:01] parental rights and so I move the amendment the question is shall the Durant floor amendment be waived be accepted those in favor of that motion will say aye those opposed no this will be a recorded vote those in favor of the Durant amendment will vote aye those opposed no are the senators ready to vote have all the senators voted does any senator desire to change their vote the

[01:15:37] clerk will close the roll. Ayes 18, nos 21. Ayes 18, nos 21. The Durant amendment is not accepted. Chair now calls on Senator Jordan, the senator from Isle of Wight. Thank you Madam President. I move the reading of the floor amendment. The question is shall the reading of

[01:16:12] the Jordan floor amendment be waived? Those in favor will say aye. Those opposed no. The reading of the Jordan floor amendment is waived. Senator Jordan. Thank you, Madam President. I know that we discussed yesterday really the importance of providing crystal clarity, I think, to medical providers. We discussed yesterday also this is a difficult topic for a lot of people, but at the basis of what we do here is to hopefully and thoughtfully do work here and get

[01:16:48] it right not talk about scare tactics not talk about possibilities or all of these other things but just to talk about human decency and respect for one another over the years we have sat in these chambers either here or down the hall for many of us people here have suffered medical emergencies people from the other side of the aisle have come to their aid and they've respected rendering care when our friends and our neighbors have a moment or medical emergency it's not lost

[01:17:24] in me that we're unwilling to do that though for a newborn infant that is a human life as well i've never had a moment here where i feel like that the majority of my friends on the other side of the aisle are callous they have different opinions than i do and we come from different places um but this will be the first time in my service in this chamber and down the hall that i truly feel like this should be one thing that we could agree on

[01:18:03] and i'm disheartened at the vote we're about to take madam president i thank you for letting me speak i thank you also for your service and with that i'd move that we support the four amendments thank you senator from franklin county senator stanley thank you madam president good morning good morning sir uh speaking in support of this amendment the senator may say on thank you madam president members of the body uh there is no question that i'm pro-life i think you all know

[01:18:41] that i think um there is a position which you all and who may be new to this chamber or newer to this chamber don't remember but i'm also against the death penalty against the death penalty because the government doesn't get it wrong we shouldn't be vesting the power to decide who lives and who dies in a government and quite frankly i think sometimes the irony that strikes me and i used to have this conversation with my good friend who is deceased uh the former senator and congressman mckeachin that it seems ironic to me that if you're pro-life then you should also be against the death penalty but what i find is sometimes man present is on either side of the aisle they're

[01:19:21] They're against the death penalty, but they're pro-abortion. Also, we need to understand, though, it's a simple constitutional question. Madam President, when does life begin is always sometimes the topic or the target when we've had these discussions.

[01:19:40] But even the more salient point here and the issue which we must discuss, cannot let this go by without this discussion, especially all of us, very smart people, have these debates on these issues all the time, is when do rights when do the rights that are endowed by our creator given to us in a document that we all adhere to in the declaration of independence the beginnings of our nation when do rights that are endowed by our creator when do they begin and that is sometimes the debate of

[01:20:16] when does life begin and we've had that debate over and over in this chamber the one across the the hall and we will continue to do so but in this amendment it says what we all totally believe that if you're alive every single one of us who was born we're endowed with certain rights by our creator that start when we breathe our first breath the law says that and so quite frankly

[01:20:49] what this amendment does simply is acknowledge what I think we all should acknowledge that if a baby is born, if a live birth occurs, then there cannot be a later abortion because then we're not talking about a medical procedure of removal of the fetus from the womb. We're talking about terminating the life of a living, breathing, beautiful human being created in

[01:21:23] his image, born to the parents. And so forgive us on this side of the aisle if we say, quite frankly we're fighting for life when at the same time we're acknowledging that rights attend to life and so i want to

thank the senator for bringing this amendment to hj1 because i think it is really the determination for us all who fight every day in committee subcommittees on

[01:21:57] this floor to protect the rights of virginians that we protect the rights of the born because they're virginians they're americans and they are our responsibility and madam president for those reasons this very sensible amendment to hj1 should pass and i ask that the members of this body acknowledging that rights begin at birth and that we have the obligation to protect those rights and that child that this is a very good amendment and i ask that you support it and i thank you

[01:22:35] madam president and i thank you for the last four years as well thank you question is shall the jordan floor amendment be accepted those in favor will say aye those opposed i those opposed no this will be a recorded vote those in favor of accepting the jordan amendment will

[01:23:09] please vote aye and those opposed no are the senators ready to vote have all the senators voted does any senator desire to change their vote the clerk will close the roll i was 18 knows 21 eyes 18 knows 21 the jordan amendment is not accepted senator rouse the junior senator from virginia beach good morning again madam president morning as the chair of senate privilege and

[01:23:48] elections um the senator from northern fairfax county has the identical bill um in the senate and so i will yield the floor to the senator from northern fairfax county chair recognizes the Senator from Northern Fairfax County, Senator Boyesco.

[01:24:07] Thank you, Madam President. Good morning. Ladies and gentlemen, today I present H.J. 1, Constitutional Amendment to Fundamental Freedom to Reproductive Health Care. For what purpose does the senator rise? I rise to speak on the bill, Madam Chair.

[01:24:23] The senator may continue. Thank you, Madam President. We all remember June 24, 2022, when the Dobbs decision overturned Roe v. Wade and the United States Supreme Court ended the federal constitutional freedom to abortion, handing our constitutional freedom to control our own bodies back to the states.

[01:24:42] This decision overturned nearly 50 years of precedent, and it goes against the will of the American people, nearly 80 percent of whom believe that abortion should be legal and accessible. In Virginia, we are the last state in the entire South that has access to legal abortion and today we are taking the next step to enshrine it in our Constitution. The voters will have the final say in a referendum later this

[01:25:16] year once this passes. So I just want to remind you that over the past couple of years the senior senator, my seatmate, the senior senator from Chesterfield County attempted to codify the right to contraception not once but twice and not once but twice the current governor vetoed it so let's talk about what's in this amendment today this amendment before us protects families entire scope of reproductive health care needs from contraception and birth control to fertility care prenatal care miscarriage

[01:25:55] management childbirth postpartum care and yes abortion care this amendment also prevents virginia politicians from taking away our freedom to make our own health care decisions for good so the tragic stories that we hear about that are happening in other states can never happen here this amendment will keep politicians out of our personal private decisions it will protect the freedom to an abortion to birth control to miscarriage treatment to ivf and the full scope

[01:26:35] of reproductive health care it protects health care professionals so that they won't have to risk jail time just to treat their patients in front of them and it establishes the fundamental freedom to all forms of reproductive health care so that no matter who holds office in our state extreme bans cannot become law this amendment keeps patients not politicians in charge of their own health care decisions so that people have the freedom to make them for themselves this amendment

[01:27:12] ensures that virginia remains a safe place for women and families we've seen other state legislatures across the nation criminalize patients who are seeking abortions and even patients who are experiencing miscarriages and it has sought to criminalize the doctors and providers who are caring for those patients banning abortion takes away freedom from all women and families to decide if when and how to start or grow their families you know we've all shared a

[01:27:49] lot about our own families and we all i think understand that every pregnancy is unique and every patient is different and so pregnancy and abortion care cannot be treated like a one-size-fits-all issue and medically unnecessary restrictions make us all say less safe. Being able to decide if and when and how and with whom to start or grow our families is essential to charting our own course for our futures and building strong communities. Reproductive freedom is an economic health equity

[01:28:26] racial and gender justice issue and HJ1 and its counterpart that I'm carrying, SJ1, the The constitutional amendment for reproductive freedom will enshrine the full scope of reproductive healthcare services, handing back that power to our individuals and their families to let them make those decisions for themselves, whether it's managing a life-threatening ectopic pregnancy, a miscarriage, IVF, or an abortion.

[01:28:57] And yes, like was said a few minutes ago, I understand that some of my very good friends, people that I care deeply about and respect have disagreements and those feelings are passionate and I respect you and this isn't personal and I you know but we on this side of the aisle have heard from our communities we have heard from people around Virginia and they've asked us to protect their reproductive freedom and we're delivering together we will enshrine these

[01:29:31] freedoms in our Constitution, ensure that our freedoms are no longer at risk, and hand the power back to the people of Virginia, who will have the final say in a ballot initiative later this year, as I mentioned earlier. I want to acknowledge the many people who have stood with women to reach this day today, doctors who've cared for patients, the women and the men who've marched and mobilized

[01:30:01] and supported their daughters and their sisters and friends those who've had the freedom to make the decisions about their reproductive health care for themselves assuming that they'd always have that freedom those people are organizing and advocating for the freedoms of their own children and their own grandchildren legislators there have been many who have served along the way

[01:30:31] long before we came into this body and I'm grateful for all of them you know I think a lot of us individually have been working on this for a long time. I first went to college 40 years ago as a freshman and that's when my real activism around protecting this right began 40 years ago.

[01:30:58] That seems crazy. This has been a moment. This is really a moment in the making and today we're finally going to give Virginians the chance to make that decision for themselves whether it belongs to individuals and not politicians. So putting this question on the ballot is about trust, it is about dignity, and it is about the freedom to control one's own future. And I ask colleagues that you vote for this bill.

[01:31:30] Thank you. The senator from Rockingham. Senator Obenshain. President Rush, speak to the resolution. The senator may continue. Madam President, members of the Senate, I will not burden you with a long speech, but I do want to make this point one more time. We've heard that this was motivated by the Dobbs decision. It may have been, but the Dobbs decision is being used as an

[01:32:05] opportunity to do much, much more than simply to enshrine in Virginia's Constitution the protections for abortion that were provided under Roe versus Wade. And we know this, we've talked about this for two years, that this constitutional amendment is deliberately drafted in such a fashion as to do much, much more than to provide the same protections that Roe versus Wade provided. I won't go further. I know the the depths of people's beliefs in this

[01:32:44] chamber on the issue of abortion, its morality, its propriety, whether it's right or wrong there is a sheer divide but where there is not a divide in Virginia is over the issue of reasonable restrictions the kinds of restrictions that were allowed under Roe versus Wade the kind of restrictions that Supreme Courts for 50 years considered and upheld most notably the restrictions that were imposed as a consequence of parental involvement laws in Virginia

[01:33:22] across the country. Those are laws that are supported by 80%. My friend cited an 80% figure purportedly of people who support Roe versus Wade. I don't know whether that's true or not, but I'll tell you, 80% of Virginians, 80% of Americans support parental involvement laws.

[01:33:41] And we know that the fundamental right language in this proposed constitutional amendment is very similar to the language that was in an amendment that passed in Florida it was very similar to an amendment that passed in Montana and in both states that was treated as an open invitation for advocacy groups to take those reasonable restrictions most notably parental involvement laws to court and in both of those states that language was used to overturn those laws and find them constitutionally impermissible as a result of the fundamental right language

[01:34:19] that is in this constitutional amendment I you know if you want to embed Roe versus Wade in the Constitution we know how to do it you know how to do it this does not do that this is an engraved invitation to invalidate reasonable restrictions on health and safety on parental involvement and and other things and I predict we're gonna be back here in a short period of time if this

[01:34:51] passes because people across Virginia are not aware that that of the impact of this I you know I heard yesterday that this is a delaying tactic to you know change this constitutional amendment it is a delaying tactic we want it delayed so that it can be drafted in an appropriate way so that Virginians will have a choice about whether or not they want to have Roe versus Wade embedded in

[01:35:28] the Constitution I prefer not I know that my friends on the other side prefer so but this goes much farther and once people of Virginia if the people of Virginia see the consequences of that I submit that there will be that that people will be shocked and appalled at what this language does I would hope that we will vote no not so that we can delay this because frankly we had the opportunity last year to change this language so that we could have an honest

[01:36:02] debate about Roe vs. Wade as opposed to something else but but I do believe we need to go back to the drawing board so that that a constitutional amendment that It clearly lays out what the patron of this suggested that was the goal.

[01:36:21] If the goal is simply to embed Roe versus Wade, this does not do it. We should vote down this constitutional amendment, go back to the drawing board, and let's restart the debate and vote on something that actually does what the proponents say that it does.

[01:36:38] There recognizes Senator Cyphers, the senator from Prince Edward. Thank you, Madam President. Speaking of the resolution. The senator has the floor. Madam President, like many Virginians, I'm uncomfortable with enshrining this really permissive abortion policy into the Virginia Constitution.

[01:37:02] I mean, based on my personal views on abortion, it is one thing, but it really doesn't matter where you stand on abortion, this is extremely broad. And the parts that are particularly disturbing to me are the lack of parental involvement for minors seeking abortions and the provision for these third trimester or late term abortions.

[01:37:25] And it's when you put the two together that it's that it's particularly dangerous. And just to be clear, and it needs to be said, what we're talking about here is very late-term abortions, potentially, during a time in which the unborn child has 95-plus percent viability, likely recognizes its mother's voice, responds to music, has developed sleep cycles and personality traits, can be described as pretty active or really chill, smiles and frowns and pouts, grabs their feet and sucks their thumbs.

[01:38:04] yes, experiences emotions and pain. This is not hyperbole, this is fact. This third trimester provision has been rationalized as necessary for these very rare instances in which the life of the mother could be in jeopardy. But the language is so much more permissive than that. It states that a late-term abortion can be prohibited if, and I quote, "and the professional judgment of a physician is medically indicated to protect the life or physical or mental health of the

[01:38:41] pregnant individual. And it's the mental health provision that really stands out here. We know that mental health is not an exact science. And as much respect as I have for medical professionals and mental health professionals, it is impossible for any of the above to say with certainty, to predict with certainty, the mental health outcomes of delivering or boarding an unborn child that the mother has likely, consciously or unconsciously, begun to bond with. And to even suggest that we have this level of precision in the training and the human wisdom that's available today is naive

[01:39:19] at best. But this is especially concerning when the expectant mother is a minor. Why do we want to create the conditions that enable a child facing a life-altering and indeed life-ending decision to be guided by people that don't know her, that will not be beside her to help her navigate the aftermath, and who lack the same capacity to have the same level of concern for her long-term well-being that a loving parent has. We are testimony yesterday that there are cases when parental involvement can be problem

[01:39:56] problematic, for example in cases of incest. But aren't we setting a double standard here? We're rationalizing extremely broad abortion policy based on rare exceptions, such as medically necessary third trimester abortions to save the life of the mother. But at the same time, we're refusing to add safeguards because of other rare exceptions. So on one hand, we're being extremely permissible because of rare exceptions. On the other hand, we're not putting in safeguards based on rare exceptions. Madam

[01:40:31] President, it's not my right or my place or within my competence and frankly within my desire to determine why these dangerous contradictions were written into HJ1. But it is my duty to point them out and to employ that every member of this body consider the potential implications and vote accordingly and specifically to my colleagues and I can honestly say at this point some friends on the

other side of the aisle you have full control of government no one in the next four years is going to do anything has the power to do anything that restricts abortion beyond current Virginia law and you have time to fix this for the sake

[01:41:09] of the many Virginians out there that this fundamentally violates their conscience, I would implore you to consider that. Thank you. Senator Head, the senator from Botetourt. Thank you, Madam President, speaking to the amendment. The senator has a floor. I wrestled as to whether or not to stand up and I do want to just associate myself with the comments from my friends, the senators

[01:41:49] from Prince Edward and Senator from Rockingham and Senator from Franklin. They've said all of the salient points, but I'm struck with this overwhelming sorrow and the irony of the day that we're doing it.

[01:42:08] And it's ironic for me because today, perhaps even while we are taking this action, my daughter and her husband are going in for the first ultrasound for my grandchild.

[01:42:24] It's not my first grandchild, but we hope to find out today whether it's going to be my first grandson. And the thought that you could just slaughter my baby is devastating.

[01:42:52] I'm a person of faith. One of the tenets of that, and I agree with the senator from Franklin, when I like him, opposed the death penalty because of exactly that. I equated it back when I first realized that that was where I needed to be, was reading in Genesis when Cain killed Abel and God said, you're going to be banished.

[01:43:18] He said, it's more than I can bear. And God didn't strike down Cain for doing this act. He protected him and protected life because it was made in the image of God. So as a person of faith, I can't support any of it.

[01:43:37] But if you're going to have it, you certainly, certainly can't leave something that is permissive as this is. It goes way too far. And I do need to put you all on notice that we'll vote for this. The decisions that we make as individuals have eternal consequences.

[01:44:00] Be careful how you vote because there will be consequences. Thank you, Madam President. Senator Sturdivant, the senator from Colonial Heights.

[01:44:18] Thank you, Madam President. Arise to speak to the resolution. The senator has the floor. Thank you, Madam President. This amendment, it really fails three basic tests that we should be looking at when we are considering to amend the Constitution of Virginia.

[01:44:37] Number one, it cuts parents out. Number two, it silences conscience. And number three, it refuses to protect children, ultimately, as we saw with the Senator from Isle of Wight's Born Alive protection in her floor amendment that was voted down today and yesterday.

[01:44:56] But let's start with parental consent. This amendment creates a constitutional right for every individual, and that includes minor children, kids under the age of 18. And there is nowhere in the text of this proposed constitutional amendment protections for parental involvement in that process. That means that a minor could obtain an abortion with no parental consent, no notification of the parents, and no accountability.

[01:45:26] Parents would have fewer rights if this passes when it comes to abortion than they would for a field trip at school or getting an aspirin that's not empowerment it's exclusion of parents and it's deeply out

of step with how virginia law has always treated children and families second to conscience protections which we haven't really talked much about there is nothing zero in this proposed constitutional amendment for religious hospitals for faith-based clinics for

[01:46:02] medical professionals that might have moral objections to abortion so we're talking about catholic hospitals we're talking about christian providers nurses and doctors of faith are going to be totally left exposed in virginia if this passes as permissive as it is without those conscience protections in there and then finally the born alive protections as i mentioned the senator from isle of white's floor amendment that was rejected again today this amendment says nothing about infants who are born alive following a failed abortion and in fact it refuses to

[01:46:41] clearly say what should be obvious, that if a child is born alive, that that child is a person entitled to care, and yet that protection is not in here. And so if supporters of this amendment is presently drafted believe that that protection already exists, then it shouldn't be a problem putting that plain language in the amendment so that it's in the Constitution.

[01:47:10] And I think the refusal to do so really speaks volumes. together, these omissions are not accidental. They are choices. Choices that sideline parents, choices that erase conscience, choices that avoid drawing even the most basic moral line about a child born alive. This amendment does not belong in the Constitution of Virginia.

[01:47:36] We should be protecting fundamental rights that respect families, that respect conscience, and that respect human life. And this amendment doesn't do that. And I hope it'd be the will of the body to vote no senator peak the senator from lunchburg thank you madam president i rise to speak to the resolution senator has a floor thank you madam president members of the body i don't want to repeat too many things that have been said already i'm with all of my colleagues over here in

[01:48:11] agreement with the points that they have made as we have begun this year in the general assembly and actually going back to last year we have talked frequently about this is year 250 250th year the celebration of this great country of ours July 4th 1776 we hold these truths to be self-evident that all men are created equal that they are endowed by their creator with certain unalienable rights that among

[01:48:49] these are life life liberty and the pursuit of happiness the fundamental thing that we protect as a government, as a general assembly, as a civilized population is life. There is nothing more important than life. That is why we are here. And in the protection of life, we also protect liberty. That's it. That's our function. That's our goal. That's

[01:49:26] why we have a government. That's why we have a civilization is to protect life. And we've gone through Roe v. Wade and all of those things, this amendment, as you have heard, does so much more than Roe v. Wade, and it opens up so many more problems. And the first, as the senator from Colonial Heights said, and some of our amendments have said from yesterday, parental notification, parental rights not guaranteed in this constitutional amendment, not addressed in this

[01:50:04] constitutional amendment. Under our law you can't get a tattoo or your ears pierced if you're under the age of 18 without your parents permission, but you can be taken by an older gentleman who has gotten a minor pregnant, taken to an abortion clinic, and had the evidence of your crime erased without the parents ever knowing what has happened. That cannot be what we want our Commonwealth to be and then of course they say born alive when that doesn't happen well I

[01:50:41] think the whole Commonwealth remembers when our former governor was on a fine radio station and says if that baby is born alive we will place it gently on the counter or the table or whatever it was and keep it comfortable life once you were born you're entitled to all of these protections we believe from the moment of conception but certainly even everyone must agree that once you have life you are entitled to every protection for that life and this amendment does absolutely nothing to protect those rights it is a terrible

[01:51:21] amendment it will bring bad bad things for the Commonwealth it will lead to multiple multiple instances of litigation this is a bad resolution it should be cleaned up it should be tightened up if what you truly want to do is embody Roe vs. Wade in the Virginia Constitution. I ask my colleagues to vote against this resolution. The senator from York, Senator Diggs. Thank you

[01:52:00] Madam President, speaking to the resolution. The senator has the floor. Thank you. I'm just going to read one sentence out of this resolution. The Commonwealth shall not penalize, prosecute, or otherwise take adverse action against any individual for the aiding or assisting of another individual and exercising such other individual's right to reproductive freedom with such other individual's voluntary consent.

[01:52:34] Those words were purposely put into here, and we've heard it say, we want to protect doctors from being criminalized in their decisions. The words could have been, we will not penalize, prosecute or otherwise taken adverse action against a medical professional but it does not say medical professional it says individual this is not moving women's health forward it's actually moving it backwards this will now allow

[01:53:09] for old-school backroom abortions to take place because now any individual can assist. It just is beyond my understanding as why we would go that far. And so this resolution is flawed, not only in this respect, but of what some of our other members have said. And I would urge everyone that this is important and we should get it right. And I don't think that this is

[01:53:42] done as well as it could have been done. And so I urge the members to vote against it. Thank you. Senator from Roanoke, Senator Suterlein.

[01:54:00] Thank you, Madam President. I think several folks have already spoken very well on the merits of this resolution. And I wish to speak very briefly on that. The Senator has the floor. Thank you, Madam President. Madam President, in a few minutes, we're going to consider a constitutional amendment to undo another constitutional amendment that was passed.

[01:54:23] And there were folks at the time that said that one went too far. It included much wider than what was being advertised, and within six years, it was invalidated by the US Supreme Court.

[01:54:39] What's happening today is an amendment that's being advertised as one thing, and it goes much further. The number of times I heard on the campaign trail, Democratic candidates, several of which are now in office, say these are scare tactics.

[01:54:56] No Virginia law will change because of this constitutional amendment. there's already laws on the books, which we fundamentally know the whole purpose of a constitutional amendment is to change laws as well, further down the order.

[01:55:12] And it's disappointing that we're doing this. It looks like as a larger body, we have learned very little. I understand. I was given advice a long time ago by another colleague that said, oh, when it's a social issue, just close your eyes and vote. And I think the Commonwealth does not do well when we do it that way.

[01:55:29] And I think it's a very sad day that this is happening. Thank you, Madam President. Senator from Northern Fairfax.

[01:55:45] Senator Boyesco. Thank you, Madam President. Seeing that no one else is asking to speak, I'd like to speak to the bill. The senator may say on. Thank you, Madam President. So first I'd like to acknowledge that this is a civil debate.

[01:56:02] And in Washington, it doesn't always go with this much respect for one another. and I appreciate my colleagues for keeping it civil. But I'd like to just address some of the concerns that were brought up, Madam President.

[01:56:20] So the Senate, my good friend from Rockingham County and the Colonial Heights and a couple of others mentioned the issue around parental rights. This amendment does not address the Virginia law regarding access to abortion for a minor.

[01:56:39] It was crafted without affecting that. Those laws are going to stay on the books. That is my expectation. To my good friend from Bonnetot County, I am so happy for your daughter and her husband, and I wish them joy.

[01:57:03] As a mother myself, I just treasure my kids, and I want everybody to be able to treasure their kids when they're ready to have children. To my colleague from York, who talked about the language about not penalizing people who help, I'm wondering if he is aware that in other states, specifically in Texas, they actually put a bounty out for individuals who are driving women

[01:57:40] to their appointments and criminalizing those individuals. That's what this is directed at. That's what that language is directed at. And then finally, when we talk about the issue that everybody has discussed, in Virginia, abortion is already regulated in the last three months of pregnancy.

[01:58:03] It has been the law since before Roe v. Wade was passed. And this amendment doesn't change that. It allows for the care when a patient's health is at risk or the pregnancy cannot survive. when that happens when that goes into effect something terribly horribly and heartbreakingly wrong has gone wrong in the pregnancy and politicians should not be making those decisions

[01:58:37] those sometimes life-saving decisions at the split second there are patients in other states who have died on a gurney waiting for the doctor and the doctor is too afraid for his own liability to care for the patient. We're not going to do that. We are not doctors in this room.

[01:58:58] We are people who are standing up to provide doctors and their patients access to care for themselves when they need it the most. Again, I respect and care about every single person in this room. I am a proud mother. Many of us are parents in this room. Many of us have daughters and sons who will face these issues in the future. And I renew my motion and ask the body to vote yes

[01:59:34] on H.R.1. Thank you. H.J.1. Thank you. The senator from Stafford, Senator Durant. Thank you, Madam President. Speaking to the motion. The senator has the floor. I think just a point of clarification, and some of this came up on the issue of parental notification yesterday.

[01:59:58] during the committee meeting, is whether we have enshrined in the Constitution, should this pass and the voters vote for it, whether parental, the rights of parents will be protected. We all know, we've discussed this, that it's well understood that in the Constitution that always trumps statute.

[02:00:22] So we heard some testimonies, it's not necessary because we already have that parental protection and statute and code, so it's not needed. And yet I think there's a little bit of confusion about whether or not we want moving forward where a young lady is going to be able to pursue an abortion without her parents knowing.

[02:00:43] Or in these kind of scenarios we've heard, a young lady that might be trafficked or might be in a situation that's abusive and the parents never know. I think that's probably one of the most looming questions that will go before us, whether or not parents are going to and whether the legislative intent is clear about that.

[02:01:04] So I think this is going to pose us for some potential more cases in courts if that's how we're going to be pursuing forward. So thank you very much. The question is, shall House Joint Resolution 1 be agreed to?

[02:01:36] Those in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Does any senator desire to change their vote? The clerk will close the roll. Ayes 21, Noes 18.

[02:01:58] Ayes 21, Noes 18, House Joint Resolution 1, is agreed to. H.J.R. 2, reported from the Committee on Privileges and Elections, and there are four floor amendments.

[02:02:17] Chair recognizes Senator McDougall, the senator from Hanover. Thank you, Madam President. Madam President, I ask that the four floor amendments be taken in a block and the reading of all four be waived.

[02:02:34] Without objection, the McDougal amendments, the four amendments, are now in a block. Shall the reading of the floor amendments be waived?

[02:02:52] Those in favor will say aye. Those opposed, no. The reading of the floor amendments in the block are waived. Senator McDougal. Thank you, Madam President. Madam President, I would tell the body that these are the same amendments we saw yesterday, So I won't belabor the point, but I will remind the body that this is an opportunity for us to come together where we can all agree, Republicans and Democrats, that if you have been convicted of a nonviolent felony, then we can agree that your rights should be restored.

[02:03:31] Examples of that would be a larceny conviction, a drug conviction, destruction of property convictions, things that are not violent. Madam President, this amendment also places the rights of victims in the highest order, ensuring that victims who have had a loss, whether through medical loss or property loss or some other loss, that they would be made whole before the perpetrator of that loss had their rights restored.

[02:04:06] Madam President, it would also say that if there still is a path for a violent felon to have their rights restored, but that path would ensure that a governor reviews their records and makes the determination that that individual could also serve on a jury.

[02:04:27] So, Madam President, as we go through this process, there is the opportunity for us to agree on the vast majority of individuals who have been convicted of felonies, and we would hope that the body would adopt this amendment. Senator from Hampton.

[02:04:46] Senator Locke. Thank you, Madam President, speaking to the amendment. The Senator has a floor. Madam President and colleagues, I would ask that you reject this amendment to House Judgment Resolution 2.

[02:05:04] As stated yesterday, this is designed to torpedo the process and prevent the amendment from moving forward. And for those reasons, I ask that you reject it. The question is, shall the McDougall floor amendments be accepted?

[02:05:22] Those in favor will say aye. Those opposed, no. The floor amendments are rejected. Senator Rouse, the junior senator from Virginia Beach.

[02:05:42] Thank you, Madam President. As chair of privileges in elections, I believe the senator from Hampton has the identical Senate version of House J2, so I'll yield the floor to the senator from Hampton. Again, the senator from Hampton, Senator Locke.

[02:05:58] Thank you, Madam President. I move that HJ2 be agreed to in speaking to that. The senator may continue. thank you madam president and um colleagues i present to you uh house don't resolution two which is not new to you or those who are here um in person or virtually we've heard it before uh house joint resolution two is the second reference to a constitutional amendment addressing the qualification of voters the right to vote and who is entitled to vote in the commonwealth of virginia this amendment provides that every person who meets the qualification of voting of voters set forth in the constitution of virginia should have the fundamental right to vote

[02:06:36] in the commonwealth and that such rights shall not be abridged by law during a period of incarceration for a felony conviction a person cannot vote however as stipulated by this amendment upon release from incarceration for that felony conviction without any further action being required that individual will be invested with all political rights including the right to vote this amendment also provides that a person who has been adjudicated by a court of competent jurisdiction as having the capacity to understand the act of voting as prescribed by law is also

[02:07:14] entitled to vote madam president if i might let me explain what this amendment is not about it is not about election interference or restitution lack of voter id laws or 45 days of early voting all of this we've heard as reasons for not to support the amendment this amendment does not negate one having to pay restitution let's address the reality being of virginia being an outlier with restoration of voting rights and ignoring voting as a fundamental right of democracy

[02:07:51] taking away a person's right to vote who has been convicted of a felony has never been about punishing people who committed a crime it was and remains an overt and intended effort to block black people from voting if that is in doubt just read the debates at the 1902 constitutional convention the delegates avowed the avowed goal was to purify the ballot and felony disenfranchisement was proven to be their most impactful method then and it continued to be a proven method keeping folks away from the ballot box when felony disenfranchisement was

[02:08:29] incorporated in the post reconstruction 1902 Constitution alongside poll taxes literacy tests and grandfather clauses it was just one tool designed to stop as many black people from voting as possible

black codes ensured that a disproportionate number of black people would be criminalized and felonized it is beyond dispute the felony disenfranchisement was and is as Jim Crow as poll taxes in the post civil rights era it remains a vestige of Jim Crow that lingers the question we should be asking ourselves is why are we talking

[02:09:06] about giving something back that should never have been taken away in the first place the right to vote is an essential currency of democracy withholding it from hundreds of thousands of Virginians makes a mockery of any pretense that we are a Commonwealth seeking to right past wrongs and make reparation of for past injustices voting is the cornerstone of our democracy yet there is no guaranteed right to vote in the virginia constitution the right to vote should not be subject to the whims of the government and should not be taken away for any reason it is time we made clear that the right to

[02:09:43] vote is basic to citizenship the main building block of civic life and it belongs to the people not the government they elect permanently taking away the right to vote for people convicted of felonies started in the jim crow era as a way to keep black people from voting it's a racist policy that still haunts virginia today as one in seven black people in virginia can't vote because of felony disenfranchisement attorney and founder of the equal justice initiative brian stevenson once said that each of us is more than the worst thing we have ever done yet we continue to punish

[02:10:18] people forever despite them having paid their debt to society taking responsibility and paying one's debt to society while some have not for their actions warrants passage of this amendment. The Virginia General Assembly should pass a constitutional amendment guaranteeing the right to vote for every citizen and Virginia resident over the age of 18. And with that explanation, Madam President, I ask that we support SJ2 and agree to the amendment. Senator Suterlein.

[02:10:50] The Senator from Roanoke. Madam President, if I may speak briefly. Senator has a floor. thank you madam president i appreciate our senator from hampton our chair of rules passionate speech just a few things to provide some perspective on the 1902 constitution was terrible i think i've criticized that a whole lot of times but this predates that this is something that has been around since the very early of the republic well we were still experiencing several of the terrible things with slavery that and also

[02:11:29] outright voter suppression that prevented folks of black folks from being allowed to register to vote or participate and so the only folks that were affected by this would have been white males and it was done so at the time because it was believed that if someone commits a serious enough crime they should not be allowed to participate in this until you know restitution has been made that's why there was a process in the governor we all seem to agree that it should not be automatic that you get all your rights restored there's nothing in this bill that says you receive your rights back

[02:12:07] to firearm ownership because we all seem to agree that perhaps we should be deliberate in that process and so I appreciate the passion I think that Governor McDonald did a great job on this issue and bringing a lot of folks back into political participation through his reforms. I think that Governor Northam and Governor McAuliffe continued that sometimes I think in ways that were not as deliberate and I appreciate those efforts though and so I would just wish to speak to that Madam President. I want to make it very clear that when we

[02:12:44] say we want to restore folks to full citizenship i don't see anything in here that restores the firearm ownership and i think it's because we all agree that that's something that should be deliberate and i think that's why this has been here since early in the republic thank you madam president again the

senator from hampton senator locke madam president this is not about passion this is about someone who was a victim of voter suppression uh just simply because i'm an

[02:13:21] african-american but i do believe i stated that the amendment stipulates upon release from incarceration for felony conviction without any further action being required an individual will be invested with all political rights all political rights including the right to vote and with that madam president i ask that the amendment be agreed to question is shall house joint resolution 2 be agreed to those in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted does any senator desire

[02:13:59] to change their vote the clerk will close the roll ayes 21 noes 18. ayes 21 noes 18 house joint resolution 2 is agreed to house joint resolution 3 reported from the committee on privileges and elections and there are two three two floorments one floorman chair calls on senator jordan the

[02:14:37] The senator from Isle of Wight. - Thank you, Madam President. I move waiving the reading of the floor amendment. - The question is, shall the reading of the Jordan floor amendment be waived? Those in favor will say aye.

[02:14:53] Those opposed, no. The reading of the amendment is waived. Senator Jordan. - Thank you, Madam President. I spoke on this briefly yesterday about making sure that we carve out a space in this amendment that will go to the voters for our clergy and so I just wanted to reiterate that and with that I would move past it to the four amendment. The senator from Alexandria. Senator Evan.

[02:15:20] The senator may continue. Thank you. Just to remind the body that the floor amendment is not really relevant to this constitutional amendment. This constitutional amendment has to do with the excuse me the obligation of the Commonwealth and its political subdivisions in issuing licenses and recognizing any lawful marriage. The amendment talks about members of church and clergy which are protected under both the First Amendment and under Virginia Code. Thank you. I ask that we vote no on the amendment. The question is

[02:15:59] shall the Jordan floor amendment be agreed to? Those in favor will say aye. those opposed no the Jordan floor amendment is not agreed to senator Rouse thank you madam president as chairman of Senate privilege and elections I believe the senator from Alexandria has the identical Senate version of house joint resolution 3 so I yield the floor to the senator from

[02:16:38] Alexandria senator Evan thank you madam president speaking I move the resolution pass and speaking to that motion senator has a floor on the walls of the jefferson memorial there's a quote from 1816 from jefferson which says i'm not an advocate for frequent changes in laws and constitutions but laws and institutions must go hand in hand with the progress of the human mind as that becomes more developed more enlightened as new discoveries

[02:17:15] are made new truths discovered and manners and opinions change with the change of circumstances institutions must advance to keep pace with the times and i must say that i believe that over the last 20 years manners and opinions have changed and with the progress of the human mind there's been more acceptance for marriage for two consenting adults as a universal right the um

[02:17:47] 20 years ago this year we put a stain on our bill of rights. It's time to fix that. Loving same sex marriages are no threat to opposite sex marriages. Same gender marriage has been recognized in Virginia

since October 6 2014 and the U.S. Supreme Court affirmed that and affirmed it and Overfell versus Hodges as well in 2015. The Constitution of Virginia must reflect the law of

[02:18:22] the land. Full stop. When we had this happen, something similar with Loving versus Virginia in 1967 when the Supreme Court said that you could be married regardless of whether or not it was interracial couple, we fixed that in 1968 just a year later. So we're overdue. And at the federal level, 52 Republicans voted for the Respect for Marriage Act in 2022. There's a super majority of voters, so I encourage my friends on the other side to join those federal Republicans. And if I

[02:18:58] could, I received a statement from one of the plaintiffs in Bostic v. Schaefer, Carol Shawl of Chesterfield County. She reminded me that her and her wife Mary entered the legal fight for marriage equality in 2013, when her now 27-year-old daughter, Emily, was born, and that names like mom and wife make all the difference in the world, and after 40 years of being together as a committed couple, their marriage is second only to parenting their daughter, Emily.

[02:19:32] To me, it's time, and it matters whether we affirm the right to dignity to all Virginians, and I ask that you join me in voting yes for this resolution. Thank you. The senator from Prince William, Western Prince William, Senator Rome.

[02:19:50] Thank you, thank you, thank you, Madam President. I rise to speak to the resolution. The senator has the floor. Thank you, Madam President. Madam President, when the underlying constitutional amendment that we are going to repeal and replace with this one upon the will of the voters later this year came up in 2006, it was called the Marshall and Newman Amendment, and the Marshall part of that amendment was my state delegate and I can remember clear as day in that November in 2006 what it was like going

[02:20:28] to the polls back when we actually still use electronic touch screens instead of the paper ballots that we have today and I remember hitting no I remember hitting no on that that screen and I remember the absolute heartbreak afterward because not only did it pass it passed by a pretty good margin too that feeling of loneliness that feeling of dejection that feeling that other people told you that you shouldn't have the same rights they do, it's a feeling that I don't think is unique

[02:21:04] to one person. I think a lot of our constituents felt like that 20 years ago. And one of mine happens to be in the gallery today. One of mine happens to be in the gallery, happens to be my keyboard teacher, who's a fiddle player and nothing fancy, greatest bluegrass band Virginia's ever seen, who him and his husband, Brian, have opened their home to me so many times. And there's so much joy and so much happiness that you ever ever could see in Manassas come on there's no party like

[02:21:38] a Chris and Brian party y'all come on over sometime you have a good time and I think about what we're doing today and I think about the fact that this is a constituent service resolution that's what this is what we passed in the General Assembly in 2006 was not a constituent service resolution because it didn't do anything to help someone.

[02:22:06] But it did hurt a lot of people. And I'm looking at someone right now who was amongst those who were hurt back then. And now I think about Brian and Chris. I think about Tanya and Kat down in Gainesville.

[02:22:23] I think about Daryl and Bradley in Manassas Park. I think about Evelyn and Heidi in Gainesville. I think about how back then in 2006, we didn't have any out-elected officials in all of Greater

Prince William, because the idea that you could be out and elected in Prince William County, Manassas, Manassas Park, it's unheard of, not even a thought.

[02:22:51] We had one person who tried and ran for a supervisor in a special election, later lost, but it was just, it wasn't there. Think about for those of you who've been here for a long time, who Prince William County's delegation was in the House side, especially back then.

[02:23:08] Couldn't have thought of it. Fast forward to where we are today. We've got something where I've heard in the last few years, why do we need this? Supreme Court's already ruled. More recently, they just declined to take up a case to, you know, overturn it, despite what Justice Thomas had written in the concurrent opinion for the Dobbs decision, where specifically talked about going after overturning Agrafel versus Hodges.

[02:23:42] But I think about a few things. Number one, Virginia has been wrong on this twice in front of the Supreme Court. You just heard about the Loving decision, and we were wrong the year before Agrafel was decided. And I can say that we were wrong because the Supreme Court of the United States declined to overturn the ruling that came out of both the district and appellate courts in that case, when Virginians came up in 2014. And that 2014 case, that ended the eight years of enforcement of the

[02:24:15] Marshall Newman Amendment. But think about how much hurt happened in that meantime, and how Virginia law, even before them, even before then, said, no, you can't. And how it was only until 2003 that Lawrence v. Texas was decided, where some people could just even be told you can love the person you want to love in the way that works for you and the person who you love. 2006, I can't speak for how every single person who felt like they were on the losing side

[02:24:55] of that felt that day, but I can speak for how a 22-year-old rookie reporter out in Manassas felt, and I can tell you about how hard it was trying to be that person who that reporter thought the world said you're supposed to be. I can tell you about the failed relationships, never because of animosity or bad feeling or whatever, but because you can't. Because what we were told in that 2006

[02:25:30] constitutional amendment was you either do it this way or you don't get to do it at all. And I think back in 06 to how, as we talk today about, hey, how about this religious exemption part, and we know that the First Amendment of the United States covers that. No clergy is required under this amendment. No clergy is required under this amendment to have to perform a marriage that they do not want to. It's not just my opinion. That's the opinion of the dean of the Prince

[02:26:02] William delegation down the hall, who was a former pastor himself. And there was no exception in 2006 for my friends over at the Bull Run Unitarian Universalist facility, the church right off of church street main street center street and you know what happened back then they had a sign asking people to vote against that amendment back then and someone tore it down and look all of us who's run campaigns we've all had our signs taken down defaced had things happen to them some of us

[02:26:38] more than others but in that case imagine when it's your civil rights on the ballot and you saw that and that the people who did that won just makes you feel awful and you try to play the role You try to play it so hard, and you just make so many self-destructive decisions in the meantime, trying to be who everyone else wanted you to be, until you finally faced up and you said, I can't do this anymore, and you actually got the help that you needed.

[02:27:10] And for me, that happened finally in November 2012, and it took so much courage. And on my 30th birthday, I came out at home. And as I did, my ma asked me, she said, I'm just worried. How are you ever going to find someone? And I said, oh, actually, you know, I'm going on a date next week.

[02:27:29] And that was October 7, 2014, at a Witham Temptation concert in Baltimore, Maryland. If you all ever like symphonic Dutch female-fronted metal, boy, do I have a band for you. And here I am now, going on almost 12 years later, and I did meet that person that day, because I'm engaged to that person now.

[02:27:54] And if there's anything I could have done to talk to that 22-year-old reporter, and every person like that reporter back in 2006, it would have been, hang in there, kid, you'll find someone. There's someone for you, too. You don't have to go through this and feel so alone so often. You don't have to. This is for you, too.

[02:28:16] And I have to say, Madam President, I want to sincerely show so much gratitude to the Senators from Portsmouth and Hampton especially, who were members of the Senate at the time when it wasn't politically popular to vote no on that constitutional amendment, and they did anyway.

[02:28:36] Because they didn't do it because it was easy, they did it because it was right. And I have to think about what the Senator from Alexandria, when he was down the chamber, what that feeling of loneliness must have been at that time, how much that must have part and the resolve that it has taken to stay a member of this body along with the delegate from fairfax delegate sickles all to this time 20 years later and you're still here i know you're going off to a different venture soon but you stayed around long enough to see that this day would come persevered just like so many people in our community had to do again and again and again

[02:29:16] not just during stonewall and all the times before then and all the decades that came after that but you just think of day after day after day of all the horrible things you had here in your life and you said this day will come and one quote i want to give you before you get on with the vote here is one from the late john lewis love this thing that he wrote this was back in 2003 in an editorial to the boston globe where he said i fought too hard and too long against discrimination based on race and color not to stand up against discrimination based on sexual orientation

[02:29:55] he later up we have been and when someone said well hey how why not civil unions isn't that good enough and he said we have been down that road before in this country separate is not equal Our rights as Americans do not depend on the approval of others.

[02:30:16] Our rights depend on us being Americans. One of the finest lines I can ever recall. And so with that, Madam President, I want to show a lot of gratitude to the people who had the resolve and wherewithal over the last 20 years to get to this day.

[02:30:34] And I also want to show so much gratitude to the people in Western Prince William, Manassas, Manassas Park. Because when I said that there were no out-electeds at the time, we have five in my district now. Each of my municipalities, the mayor of Haymarket, the council members in Manassas Park.

[02:30:59] Quick shout, Tom Ossina and Daryl Morgan and Tom's husband, Ed, by the way. and to donald shoemaker who was the first out elected official in greater prince william who's now the treasurer of the city mass spark came a long way we came a long way and our equality caucus as of today stands at 10

members of the virginia general assembly when it was must have been something else 20 years ago as senator admin sat there and said is anyone else going to come

[02:31:33] out and then when delegate sickles did and others started to follow slowly one after the one after the one until we got to the place where we are today and the place where we are today is to correct a wrong and to do something supporting virginia families and something that supports the civil rights of all virginians because of who they are never despite it thank you madam president

[02:32:01] question is shall house joint resolution three be agreed to those in favor will record their votes aye those opposed nor are the senators ready to vote have all the senators voted does any senator desire to change their vote. The clerk will close the roll. Ayes 26, noes 13. Ayes 26, noes 13.

[02:32:30] House Joint Resolution is agreed to. House Joint Resolution 4 reported from the Committee on Privileges and Elections and their three floor amendments. Senator Head, the senator from Botetan.

[02:33:08] Thank you, Madam President. I move we waive the reading of the floor amendments and also move that we take all three of them up in a block without objection the head floor amendments are all in a block shall the reading of the floor amendments be waived those in favor will say aye those opposed no the reading of the floor amendments are waived senator head thank you mr. president I move the

[02:33:42] amendments and speaking to that senator may continue thank you president you know just a few short years ago in 2019 the general assembly took up the resolution for a constitutional amendment to change the way we drew all of our political districts we voted then we then we had a legitimate intervening election and then we had another vote in 2020 and then it went out on the ballot and the voters of Virginia agreed with us and there were many of us in this body now that were that were we're voting at that time I was a member of

[02:34:20] the body down the hall at the time, but voted on it both times and the voters of Virginia agreed with us that political gerrymandering was a bad idea and we needed to stop it. And what's interesting about that was that not only did the voters of Virginia just say that, 66% of the voters of Virginia voted in favor of the constitutional amendment. Now COVID forced the delay of the implementation implementation of that, so we couldn't actually get to the new districts until the last congressional election. It was the first one that we've had, only one congressional election.

[02:35:00] But if you want to look and see if we got it right, look at what the results of that election was. Well, first of all, I also wanted to point out that when 66% of the people voted for it, it wasn't just the population as a whole. It was every locality except for, I believe it was, what was it Arlington County Arlington County was the only one that voted no and the ones that voted yes all of the rest of the localities voting for this and they voted for it for about the same margin that it went statewide so you ended up having such diverse localities as Dickinson County and Scott County in

[02:35:40] far southwest Virginia having almost exactly the same percentage of the vote in favor of that constitutional amendment as you had in the city of Charlottesville in Albemarle County. Yeah, it just, you know, this, this, this, it, everybody agreed. We don't want to have political gerrymandering. But now, apparently, yes, we do. At least, at least the people that are going to support and vote for this think that we do. And so what these amendments do is simply says, rather than it being political, if there is a need for us to respond to the actions of

[02:36:19] another state, that we would give it back to the Virginia Redistricting Commission to redraw those lines, which makes it be nonpartisan. If you want to go ahead and say, no, we've got to be able to do this, understand if you voted for the constitutional amendment resolutions back in 2019 and 2020, and Some of you weren't here then, but if you voted for it then and you thought that was a good idea because it was your ethics and your beliefs and they were foundational and fundamental, but now because you hate the man that's in the White House, and that's really the only thing that's behind this, is that you hate the man that's in the White

[02:36:59] House and you want to blunt his power, then we're going to politically gerrymander and take away the rights of the people to have representation that represents them. And what we got in the last congressional election, by the way, reflected the population.

[02:37:14] The presidential vote, Donald Trump got 46% of the vote. Kamala Harris got 54% of the vote in the Commonwealth of Virginia. And if you look at our congressional representation of the 11 members of Congress, we've got now five Republicans and six Democrats.

[02:37:32] And if you do the math on that, that gives you a 45-55 split, which is as close to the presidential outcome as you could possibly get. We got it right with the last constitutional amendment that is absolutely irrefutable.

[02:37:48] And if we're going to mess this up because situational ethics get in the way, okay, that's what you can vote on. But understand, if your ethics aren't foundational and you stand on nothing, hard for people to understand who you're really going to be because every time the wind blows, you're going to change your position.

[02:38:04] I'm not going to do that. So I hope that we will approve these amendments. And yes, this would delay the process, but we don't need to make the changes to the constitution. So, I hope that you will support these amendments. - Senator Surovell, the Senator from Eastern Fairfax County.

[02:38:27] - Thank you, Madam President. Speaking to the amendment. - The Senator has the floor. - Ladies and gentlemen, Senator, I would hope we would oppose this amendment. This amendment like the others we've seen today and we saw yesterday are just really poison pills. We all know that if we were to make a single change to even a comma in the text of any of these, then these are dead.

[02:38:52] And the time for substantive debate on these types of amendments was on first reference, not second. And so that these amendments are really just, I guess, either opportunities to, well, I'm not going to get into that.

[02:39:08] But I would just say in terms of the substance of what you have before you, when the last amendment was proposed and when it was voted by voters, I don't think, first of all, I didn't vote for it. I think I'm the only one in here who didn't vote for it.

[02:39:26] either as a legislator oh I'm sorry I forgot there's a few people that came from the other body that that that voted that voted against it opening on the side but at least amongst the senators who are present at the time I think I was the only one that voted against it but um who's left but um at the time it was proposed by not just its sponsors but I think by the Virginians who voted for it they didn't imagine that we're going to have a hyper-partisan fascist

[02:39:57] ideologue telling state legislatures around the country to basically design, redesign their districts to maximize his own personal political power. And to the extent anybody even thought about that, I think most people thought that there were people of principle in the Republican Party that would stand up to it because they cared about the rule of law or system of government preserving democracy. But apparently that's not a reality either in some of these states. And so as times

[02:40:33] have changed uh it's now time for us to make an exception to what was passed and that's what this bill is or the resolution is it's a proposed temporary limited emergency exception to preserve democracy at the end of the day virginia voters will decide whether they want to give us the power to take action or not and if you were to adopt this amendment not only would it kill this but But if we'd adopted it back when we first debated this a few months ago, it would totally defeat the whole point of doing this.

[02:41:11] And so I would ask that we oppose it. Question is, shall the head floor amendments be accepted? Those in favor will say aye.

[02:41:27] Those opposed, no. This will be a recorded vote. Those who agree with the head floor amendments will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[02:41:42] Does any senator desire to change their vote? the clerk will close the roll as 18 knows 21 eyes 18 knows 21 the head floor amendments are not agreed to senator rouse the junior senator from virginia beach thank you madam chair i yield the floor to the majority leader senator from eastern fairfax county the senator from eastern fairfax county senator surovell thank you madam president i move passage of the resolution and speaking of

[02:42:21] that motion the senator may continue thank you madam president ladies gentlemen Senate what you have before you today is a constitutional amendment that none of us wanted to bring to the floor but circumstances beyond our borders have made it necessary I think all of us I think all of us agree I would hope we'd agree that free and fair elections are not merely a feature of our democracy but they are the foundation of our democracy and right now across America those foundations are under attack you know we worked hard we worked diligently to establish a fair bipartisan redistricting process and at the time we did that

[02:42:59] we thought we thought other states would treat us fairly too we passed the constitution amendment in 2020 that created the redistricting commission because we believed and still believe that drawing electoral maps should be done through an open transparent process that prioritizes fairness but we don't operate in a vacuum today the actions of other states have forced us now to confront an uncomfortable reality that is when MAGA control states engage in unprecedented

[02:43:33] mid-decade redistricting to rig elections in their favor our commitment to fairness that we made that our voters made effectively becomes unilateral disarmament our voters today are being their voices are being systematically diminished while other states stack the deck that isn't what we we signed up for when we ratified the Constitution United States of America on June 25th and 1788 as the largest state in the Union to do so so I'm gonna be clear with this amendment does and more importantly what it does not do first of

[02:44:12] all House Joint Resolution number four provides a General Assembly with limited temporary authority to redraw our congressional districts in response to other states mid-decade redistricting it is

strictly circumcised circumscribed at your service it applies only between all right I'll look for that in the VPAP clips it applies only between January 1 2025 and October 31 of 2030 and only when another states conducts a redistricting during that same window for

[02:44:52] purposes other than completing their decennial redistricting or complying with a court order this is an emergency provision it's a temporary exception to meet an extraordinary threat. After the 2030 census, Virginia's redistricting process will resume as established in our Constitution, as the senator from Baudetat wants us to do.

[02:45:14] Most importantly, the amendment preserves the people's voice. Any redistricting conducted under this provision has to be done only after Virginia voters have had an opportunity to review this amendment, and I can commit to you all that they will have the opportunity to review maps before they cast their ballots. And this ultimate authority remains with the voters themselves.

[02:45:39] Now, I want to make clear, some are going to say this is partisan gamesmanship or retaliation. I want to address this directly. This isn't about payback. It's about restoring and preserving balance to our system. When other states manipulate their maps to gain unfair advantage, they don't just home their own voters.

[02:45:56] They also harm Virginia's ability to have its fair representation in Congress. We're simply seeking to level the playing field in Congress, which is being tilted against us and our state. I wish we didn't have to do this.

[02:46:13] I wish every state would commit to the same principles of fairness that we embraced. But wishful thinking is not a strategy. When we're faced with a national assault on fair representation, we have two choices. We can stand by while other Virginia voters are marginalized. We can take measured, temporary action to protect their voices.

[02:46:33] And this amendment represents the latter choice. It is a narrowly tailored, time-limited response to a specific threat that we face. It maintains voter oversight. It ensures transparency. And critically, it preserves our long-term, our long-time commitment to bipartisan redistricting while dealing with the immediate crisis.

[02:46:55] Madam President, I would hope we can adopt this amendment, make sure Virginia's voters' voices are protected. The senator from Lynchburg. Senator Peek. Thank you, Madam President. I rise to ask if the senator from Eastern Fairfax will yield for a question.

[02:47:15] Will the senator from Eastern Fairfax County rise and yield for a question? The senator yields. The senator from Lynchburg has the floor. - Thank you, Madam President. Senator, I am correct. Well, let me, I am trying to get the sequence straight, but if this amendment passes today, this next week or so, the next step is that it goes to the citizens of the Commonwealth of Virginia for a vote.

[02:47:49] And then if it votes, do we come back into special session after the citizens have voted to draw the new congressional districts. - The Senator from Eastern Fairfax has the floor. - Thank you, Madam President.

[02:48:04] First of all, there has to be, there's a little bit of debate about whether or not we need to actually pass legislation to put it on the ballot, but there is going to be legislation to place it on the ballot and that legislation will set the date. And then yeah, maps have to be drawn, although maps, they either could be

drawn in special session they could be passed provisionally during the regular session and we'll see what happens with that but further question will the senator from Eastern Fairfax yield for another question how you senator yields the senator from

[02:48:41] Lynchburg yes thank you senator from Fairfax you committed that you would show to the voters of the Commonwealth of Virginia what these proposed new congressional districts would be do we have a similar commitment from our dear friends down the hall, that they will also agree and vote on what the congressional districts will be before they go to the voters for the referendum and that they will not be changed after the voters vote on that referendum in the spring or summer of this year.

[02:49:19] Senator from Eastern Fairfax County has the floor. Madam President, what I'd say to the senator is the maps will be made available to the public before the vote occurs i've spoken to the other side and i believe that they also believe in that and i believe actually i should say before voting starts and i believe the other side believes in that as well the other chamber i thank the senator and now speaking to the

[02:49:47] resolution the senator from lynchburg may continue just five years ago two-thirds of the citizens of the commonwealth of virginia said let's please do away with this partisan gerrymandering that's been going on for a hundred plus years in the Commonwealth. Let's adopt this constitutional amendment. Let's have as reasonably fair and unbiased congressional Senate and House districts as we possibly can. Now we have this bill,

[02:50:25] this amendment, which is going to completely do away with that and we heard the senator from Eastern Fairfax say well it's just this one-time deal and once this is over this emergency we're gonna go back in 2030 and 2032 to the bipartisan redistricting plan that two-thirds of the citizens of the Commonwealth of Virginia just recently approved I can't wait to see the members

[02:50:59] of this body and the members down the hall tell four congressional members who been in office for what is this 2026 six years three term incumbent congressman that oops sorry we made a commitment back in 2026 then we'll go back to bipartisan redistricting and your seats are gone sorry guys hit the road yeah that's really gonna happen that is really gonna happen and the other thing why the senator from Eastern Fairfax was discussing this and we all know it's

[02:51:36] true and I hope that the citizens of the Commonwealth will know it's true but one of the senators in this chamber as that was being discussed said and we're gonna do you guys next guaranteed that they are gonna redo the house they're gonna do away with the entire constitutional amendment you're gonna redo the House of Congress you're gonna redo the House of Delegates and you're gonna redo the state Senate we all know that is what is gonna happen don't kid us. As my grandmother used to say, you're trying to sell the citizens of the Commonwealth a pig

[02:52:14] in a poke. We know exactly what you're going to do. You're going to do away with bipartisan redistricting. You're going to try and put us in a 10 to 1 Democrat to Republican congressional districts. And then you're going to again resume gerrymandering the entire Commonwealth.

[02:52:32] This is a horrible idea and I will grant that we started it. But a number of states have stood up to bad ideas indiana most recently showed courage and conviction did not yield to political pressure i would ask that the members of this body show courage and conviction and not fall prey to political

pressure to not vote against what our citizens just voted for to not vote for something that we know our citizens do not want and we know where this road leads

[02:53:12] this is a terrible resolution i ask that you vote against it senator mcdougall the senator from hanover thank you madam president madam president speaking to the resolution the senator has a floor madam president i'll try to have my comments not be as cutting as the gentleman from eastern fairfax only my seatmate was paying attention there madam president as we look at this resolution

[02:53:50] remind the body that gerrymandering has been going around for a long time. Patrick Henry and James Madison apparently didn't like each other, and there was a realistic possibility that James Madison would not have been in Congress and then become president as a result of gerrymandering.

[02:54:11] Madam President, we went through this conversation. Democrats have been guilty of gerrymandering. Republicans have been guilty of it. We've all done it on both sides. And as a Commonwealth, we made the decision to stop.

[02:54:27] We made the decision to stop. When our kids get into arguments and it's tit for tat, back and forth, some point they need to stop. This body has the opportunity to continue stopping.

[02:54:46] Virginia led the nation 250 years ago. Virginia has the ability to continue leading the nation now as we celebrate that anniversary.

[02:55:02] Madam President, other states have stood up. Other states have had conviction. Republicans in Indiana stood up to political pressure and said, "We're not going to play these political games."

[02:55:23] And they stopped it. Madam President, that in this body, any one of my colleagues across the aisle can stop this, any one of you individually.

[02:55:39] So I would ask that as we started this session, that we lead Virginia again. We focus on affordability, on what families are concerned about, their energy cost, being able to pay their grocery bills, how we can make life less expensive for them.

[02:56:02] And Madam President, I ask that my friends across the aisle make that decision today, just like their Republican brethren in Indiana, and not move this forward. Madam President, if nobody has the courage in this body to do that today, I call upon the governor, who in her sole decision will be able to decide whether to put this on the ballot early or wait for the November election.

[02:56:34] Individuals do have choices in this process. I hope that one of my friends across the aisle will make that choice today, but if not, I hope the governor will make that choice on Saturday.

[02:56:51] Thank you, Madam President. Senator from Bottotop. Senator Head. Thank you, Madam President. Speaking to the resolution. Senator has a floor. Thank you, Madam President. I just, I find it really ironic that the senator from Eastern Fairfax said in his rebuttal to the floor amendments that I proposed earlier that were defeated that we have to do this and get this through to preserve democracy to preserve democracy by taking away the will of the people

[02:57:30] because we're gonna preserve democracy to make sure that everybody votes the way we want them to vote and as long as you vote the way we wanted to vote you can preserve democracy but if you're not going to vote the way we want you to vote on everything then we want to take that right away we want to redraw the line so that you will vote just exactly the way we want you to and we can control it. That's not democracy, that's communism. And I just, I find it ironic that that's the way that we're going to do this if

you're going to vote for this. So again, just pay attention to what's going on. And I hope very clearly that the voters of Virginia are paying close attention to all of the debate that we've got going on. It saddens me to think that, you know, apparently

[02:58:09] the spirit of Harry Floyd Byrd is alive and well in this building. So thank you, Madam President. - Senator Stanley, the senator from Franklin County.

[02:58:28] - Thank you, Madam President, speaking to H.J. Ford. - The senator may stay on. - Thank you, my good friend from Fairfax, I was wondering if he had the foresight. What, what'd I say?

[02:58:45] Don't understand the implications of what we're trying to do here and how it will affect us in the many years to come, but I'm gonna assume that he's contemplated that at least a little bit. Ladies and gentlemen, if I can, Madam President, tell you a little story. I got put on the Virginia Redistricting Commission.

[02:59:03] I thought I'd either lost a bet or I'd really ticked off the senator from James City County. And we came here to this Capitol over and over and over, almost weekly, daily. Every week we'd spend two or three days here. Citizens, members of the House, members of the Senate. We debated this back and forth.

[02:59:21] Clearly the parties that were in power at the time were the Democrats demanding that they have 70%. And I remember my good friend, my seatmate right here from Hanover, asked a very simple question. "What would happen if we win the next upcoming election?"

[02:59:39] They scoffed at him, "I don't know what they're growing in Hanover, but that man is smoking it," they basically were saying. Well, guess what? Jason Muarez, Governor Yonkin, Madam President, a majority in the House.

[02:59:57] So we locked up before that election even occurred, but it was prescient because it demonstrated that Virginia is split. I've been in this body since 2011. The highest count that we ever had was 2011, 2218, since I've served.

[03:00:20] Ever since then, it's been 2020, 2119, 2119, 1921, back and forth, because it usually reflects the will of the Virginians, of all Virginians. It's quite tightly grouped. I'm not a math guy, so I used my calculator on my phone for like the first time ever, and I went six divided by 11, 'cause it's 6-5 right now in the congressional seats.

[03:00:44] Well, that's 54%, just about hit the number on what the presidential election was, Democrat to Republican, which demonstrates that it worked. And it worked because the fail-safe measure was to give it, to boot it to the Supreme Court.

[03:00:59] They got their own map drawers. They didn't regard any of us when it came to where we lived. They did it fairly. And that's what the people voted for. And guess what came out? Fairly drawn maps. Now, just remember the election, we went down the hall just a little while ago.

[03:01:17] They got a lot, they picked up a lot of seats. Is that not good enough for you? You want more? Yes, you do. - Senator from Charlottesville, I know you do. The appetite for power can be insatiable.

[03:01:33] We are not picking our seats. The people pick the people to sit in them. And here we are, for the first time ever, I'm a constitutional lawyer. Defend it, sue against it. I've sued presidents and governors here too.

[03:01:52] Have sat, well I've sat. Been successful, sometimes not, but usually successful. But let me tell you this, I've never seen anything in the Constitution that is a temporary clause. For the next 10 years, or as long as the guy is president of the United States, we're going to have the ability that if one little line is drawn in another state, not for partisan reasons, but the way this is written, if they're just doing a map correction, in a knee-jerk reaction, we can go and try to get more, more power, more people, not reflect Virginia in the United States Congress.

[03:02:30] Ten to one, I hear. What seems to me what this kerfuffle is all about is because the current president has encouraged some states to change change their congressional makeups and the lines last time i checked when he was elected in 2016 in 2018 madam president the democrats picked up i think 41 seats in congress what are you afraid of afraid of the change in the electorate my goodness as long as

[03:03:06] i've been alive and interested midterms have always not helped the party in power in the the White House. Are we losing confidence in our abilities, Madam President? Our ability to convince the voter in the Commonwealth of Virginia that we have the better way, the better plan? So we must rig it? The answer, Madam President, is unfortunately yes. And that's what this temporary amendment to

[03:03:41] the Constitution, unheard of, does. And I think I heard it earlier on the floor, and I must concur, once you open this door, you're never going to shut it again. And we're going to betray the Virginia voter once again because we think we know better than they do like my dad used to say to me but he used to say to me he used to say this to me lovingly when I want your opinion son I will give it to you that's what you're

[03:04:12] doing to the people of Virginia vote no on HJ4 our Commonwealth depends on it thank you Madam President the senator from Western Enrico Senator Van Valkenburg thank you Madam President Madam President speaking to the resolution the senator has a floor thank you madam president members of the body I've heard I've heard this is gonna be a slippery slope I've heard we're

[03:04:50] instituting Jim Crow and we're anti-democratic I've heard we have the individual choice here and as is so often true over the last 10 years of politics every accusation is a confession every accusation is a confession the other side mistakes their inability to push back against the craziness of our current president for how we will act or are acting um i believe the senator from franklin is right i believe there's about to be a whoopin

[03:05:27] this november i think that's true and i think that is why the president is going to these states demanding that they change their lines but I would just say you know we sit here and you know slippery slope it's anti-democratic it's this it's that you know the consistent inability of the Republican Party to push back against the president's actions that go against the rule of law the president's actions that go against the legislative process in our Constitution I don't even have to

[03:06:05] to point, I don't have to point, I'll give one example because we don't need to dwell on this forever. I'll give one Virginia example because I heard the senator from Hanover talk about affordability, just one, because I heard the senator talk about affordability. Just in the last month, we have seen the president illegally cancel a win project that the citizens of the Commonwealth of Virginia are already about to pay for that would have powered 670,000 homes.

[03:06:35] And now, right, he wants us to pay for it twice. He wants the citizens of Virginia to pay for 670,000 homes twice. And I haven't heard a peep from the other side about that.

[03:06:53] And so don't mistake the other party's inability to respond to the moment, to our ability to make nuanced decisions to protect the people of Virginia. Thank you, Madam President. The senator from Charlottesville, Senator Deeds.

[03:07:13] Speaking of the resolution. The senator has a floor. Madam Chair, I know that redistricting has lasted forever, but modern gerrymandering has only occurred since modern redistricting since the mid-60s, since Baker against Carr. In that time, around the country, congressional districts have been changed five times midterm, four times this year, or this past year, one other time in the last 60 years.

[03:07:43] We are in unprecedented times, this president has gone to states and demanded they change their lines. We are not taking one thing from the people. They will get the final say on this, they will judge whether this is the right action or the wrong action.

[03:07:59] I would suggest that now is the time that we stand up for Virginia, we stand up for this country. This resolution is absolutely imperative. So I hope you all join me. I look forward to all my friends on this side of the aisle, on my side of the aisle, joining me.

[03:08:16] Thank you.

[03:08:32] The voters will get to decide at a date we have not been told yet.

[03:08:49] We know it won't be in November, and we were told very clearly that it was anti-democratic to have an election in May for mayor or town council, just like we'd had for decades. And even though people were used to that tradition, the political culture was there.

[03:09:06] were told no not enough people will participate in a May election that they could have predicted at the end of the last May election or the one before that but now at a time we still don't get to know yet we're gonna have a referendum and maybe April we certainly aren't gonna have in November and we're being told that's democracy that's democracy madam president this is inherently anti-democratic the other great problem with this is it's yet again fraying our system here in the commonwealth few years ago when medicaid expansion happened and there was a work requirement there were those of us that said i don't believe that the democrats will hold up on

[03:09:46] the work requirement i was correct when the league of women voters came to me and said we need a redistricting commission and i said i i'm very open to this i have trouble believing the democrats will hold up to this and you proved me right i didn't want to be right but i was proved correct again. And it makes it very difficult for there ever to be bipartisan agreements when this happens again and again. Thank you, Madam President. Senator Cyphers. Senator from Prince Edward.

[03:10:20] Thank you, Madam President. Speaking of the resolution. Senator has the floor. Madam President, I wasn't going to speak on this one, but when I hear that the voters will decide, I mean, we have, we already know we have more Democrat congressional districts in Virginia than Republican districts.

[03:10:37] if Congress was supposed to be that the majority of voters decided, then why do we have 11 congressional seats? The way that it's set up, it's so that districts like mine can have representation in Washington. And being angry at President Trump or being angry at other states is not a good reason to turn our backs on our citizens who have rights to be represented and whose system of government was set up to ensure that they are represented. So I hear all of the arguments here. I absolutely do not by the argument that the voters will decide because the majority of congressional districts

[03:11:16] in Virginia today are democratic. We're living in very partisan times. If we're going to say it, let's say it accurately. The majority will take away the rights and the representation of the minority. Thank you, Madam President. Senator from eastern Fairfax County, Senator Suroville. Thank you, Madam President. If no one else desires to speak, speaking to the The floor is all yours, Senator.

[03:11:47] Thank you. Just a couple points I want to make to wrap this up. No matter what we do here today or do in the future on any other redistricting, which I don't think will ever happen, voters are going to have the final say on this.

[03:12:04] Virginia voters will get to decide where they give us the authority. We ain't going to do nothing without their permission. There's going to be a very robust debate about this. So keep that in mind. And all this talk about we're going to go further and further and further abolish the commission, it's nonsense.

[03:12:21] I haven't heard a single person talk about that, and I don't think there's anywhere close to the votes, even on this side, to have a conversation about getting rid of the commission permanently. I heard some talk about where Virginia is in terms of its results and the fact the presidential election was 54-46 for Madam President.

[03:12:41] The election we just had that you were involved in, I think, was 57-42. I just want to note for the record, by the way, that if you remove the 9th Congressional District from those results, If you take that one out and you look at just the remaining results from that gubernatorial election, by my math, the election was 60-40 Democratic in the remaining 10 congressional districts.

[03:13:09] So if you want to talk about, do the math. I'll show it to you. I have it here in my spreadsheet. But the remainder of the state, if you carve out the ninth, was 60-40, 60-40. Now, the reality also is that elections are under assault in this country.

[03:13:33] We just heard yesterday, President Trump suggested that we just not have elections in 2026. Did I hear a single person on the other side say, "Ed, word about it." Or is it just more, you know, we're just going to tolerate a president who constantly questions our democracy?

[03:13:52] We have an administration right now that is demanding our voter list. Why does he want to see Virginia's voter list? What is he up to? Why has the United States Postal Service decided that they're not going to guarantee postmarking ballots anymore when hundreds of thousands of Virginians have now elected to cast their votes by mail?

[03:14:13] Why has the Department of Justice suggested, why has this president suggested that taking ballots, receiving ballots that are postmarked before the election and counting them after the election, which we authorized five years ago in this General Assembly, why is he suggesting that's illegal?

[03:14:30] Because he's threatening democracy. Have not heard a single peep out of the other side about the attacks on our systems of elections in Virginia trying to mess with our elections here by the federal government, which is a power, by the way, that is expressly reserved to our General Assembly.

[03:14:47] We decide how our elections are conducted, and we decide who gets to vote in this state. The Constitution was deliberately designed that way, and it was also deliberately designed, by the way, that the federal government not control the elections so that some imperial tyrant couldn't cancel them. Stand up for once. Stand up for democracy, for God's sakes.

[03:15:09] And that's what this is about. This is about ensuring that we have a system of government that is actually democratic past what this person, this current president. And the citizens of Virginia are going to hear these arguments, and they're going to have a chance to listen and decide who's right.

[03:15:27] And I guarantee you, they're going to want to believe that they have a fighting chance to be heard equally at the federal level. All of us should be troubled by the necessity of what we're doing today because it reflects a disturbing trend in our politics where power takes precedence over principle.

[03:15:48] Our responsibility is not to pretend that trend doesn't exist. Our responsibility is to protect the Commonwealth of Virginia from its consequences. That's why we need to vote for this resolution. I hope there's some principle left on all sides of this room and I hope we can see more than a partisan vote on this.

[03:16:08] Thank you, Madam President. question is shall house joint resolution 4 be agreed to those in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted does any senator desire to change their vote the clerk will close the roll ayes 21 noes 18. ayes

[03:16:41] 21 noes 18. house joint resolution 4 is agreed to regular calendar senate joint resolutions on third reading senate joint resolution one proposing an amendment to the constitution of virginia by adding in article one a section numbered 11-a relating to fundamental right to reproductive

[03:17:04] freedom and it's clean senate senator boys go the senator from northern fairfax county northern fairfax county thank you madam president i move uh the that we agree the resolution be agreed to And would you like to speak to it? Madam President, I'm speaking to the bill this is exactly the same

[03:17:43] that we considered the first the first piece of legislation this morning. We have also voted for the exact same constitutional amendment last session and again I renew my my motion that we agree to the resolution. The question is shall Senate joint resolution be agreed to? Those in favor will record their votes aye those opposed no are the senators ready to vote have all the

[03:18:13] senators voted does any senator desire to change their vote the clerk will close clerk will close the roll ayes 21 noes 18. ayes 21 noes 18 house joint senate joint resolution one is agreed to senate joint resolution 2 proposing the amendment to section 1 of article 2 of the constitution of

[03:18:47] virginia relating to qualifications of voters and the right to vote persons not entitled to vote Senator from Hampton, Senator Law. Thank you, Madam President. I move that House Senate Joint Resolution 2 be agreed to and speaking to that.

[03:19:05] Senator may continue. Madam President, Senate Joint Resolution 2 is the exact same as House Joint Resolution 2, and we spoke to that just previously. So again, I move that it be agreed to. The question is, shall Senate Joint Resolution 2 be agreed to?

[03:19:21] Those in favor will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Does any senator desire to change their vote? The clerk will close the roll.

[03:19:38] Ayes 21, noes 18. Ayes 21, noes 18. Senate Joint Resolution 2 is agreed to. Senate Joint Resolution 3, proposing an amendment to Section 15-A of Article 1 of the Constitution of Virginia, relating to marriage between two adult persons, repeal of same-sex marriage, prohibition, affirmative right to marry.

[03:19:58] The senator from Alexandria, Senator Abbott. Thank you, Madam President. I move the resolution to be agreed to in speaking to that. The senator may continue. Yeah, this is the marriage equality amendment. And in the name of the children who are being raised by same-sex parents, I ask that you affirmatively vote.

[03:20:18] Thank you. Please vote yes. The question is, shall Senate Joint Resolution 3 be agreed to? Those in favor will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Does any senator desire to change their vote? The clerk will close the roll.

[03:20:40] Ayes 23. Nos 16. Ayes 23. Nos 16. The resolution is agreed to? Madam President. President? Who is it? Senator Eben, the senator from Alexandria. Having voted on the prevailing side by which we just passed Senate Joint Resolution 3, I ask that we reconsider that motion.

[03:21:05] Thank you, Senator. I get to do that parliamentary procedure one last time. The question is, shall the vote by which Senate Joint Resolution 3 was agreed to be reconsidered?

[03:21:25] Those in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Does any senator desire to change their vote? The clerk will close the roll.

[03:21:47] Ayes 39, noes 0. Ayes 39, noes 0. the vote is reconsidered. Senator Eben. I move that the resolution pass and to encourage the five members of the other side who voted for this to vote the same way again. The question is, shall the vote, shall Senate joint resolution be agreed to? Those in favor of that motion will record their votes. Aye, those opposed, no. Are the senators ready to vote? Have all the senators voted? Does any

[03:22:24] Senator desire to change their vote. The clerk will close the roll. Ayes 26, noes 12. Ayes 26, noes 12. Senate Joint Resolution 3 is agreed to. Senator Surivelle, the senator from eastern

[03:22:55] Fairfax County, on the calendar. And agree the clerk. Does that complete today's calendar? Yes, sir. Awesome news. Thank you. Senator Locke. Is there any other business to come before the Oh, Senator Locke.

[03:23:24] Oh. Madam President, if you could come right here in the middle, please.

[03:23:52] We know that over the last four years you've had to deal with an unruly group, most of that my Democratic colleagues. Maybe just Senator Serval, but Madam President, we came together, Senator Locke and her caucus and Republican caucus, and we wanted to present to you a contribution on your behalf to a charity that we know you hold dear in your heart.

[03:24:21] But thank you for your time with us. We look forward to hearing about your future endeavors and appreciate your leadership over the years. Sarah Locke. So on behalf of the 40 of us here on the floor, thank you for your service to us as the president of the Senate.

[03:24:38] And we will present to you this check for $2,500 to the National Center for Healthy Veterans. Thank you.

[03:24:58] Thank you. Senators, thank you for doing this. You know, our veterans, and I've just recently watched a movie because apparently I had nothing else to do.

[03:25:18] And it was glorious to have nothing else to do, as you all know how that can be. And I saw that they were suffering from PTSD and it was very great. And what happens is the battle is over for them, but their minds continue to fight.

[03:25:37] They're off the battlefield, but their brain doesn't understand that. And unfortunately, we've not done very well for our veterans who we've sent to war. And they're suffering greatly, they're suffering terribly from suicide, and we've noticed that a lot of them, because they serve together, they understand what it is to see a torso that's only half there.

[03:26:07] And they really need to be in community with each other and not separated from each other because nobody else understands that except their brother and sister in arms. And so this is what this group does.

[03:26:23] They bring them together and unfortunately last year the facility burned to the ground and so this is helping to build that back up. What if you would allow me to move on and just say, and I'm not going to cry, but you can't imagine what it feels like to come from another country and to see how you work with each other, even when you speak against each other.

[03:26:53] I've watched you go out there and hug necks and sit down and talk, and you come back and you fight all over again, and then you go back out there and you sit and talk with each other and in so many countries it doesn't happen I mean they kill each other you've watched some of the YouTube and they're climbing over their desks banging on each other's heads and we we're not doing that and for me as an immigrant yes I've been here since I was six years old but it's still

[03:27:27] fascinating to see power just you know you give the power away and you do it peacefully and then you come back and argue and say okay I'll take my noogies now but I'll see you in four years and that's awesome and the world watches that and we ponder the American experiment that's still going on and I tell you it's just fascinating and then the last thing if you allow me is four years ago when I walked through those doors those double doors to begin

[03:28:06] training on how to preside over this most majestic body I tell you when the doors opened and it was just training I felt a majesty in the Senate you cannot maybe you felt it but I remember in 2001 when I was first elected to the other body I didn't feel that here yes when I was then delegate Sears because we're

[03:28:42] rowdy and we have fun down there and then i walked in here and there was a majesty to this place please don't ever lose it when you argue and and all that don't lose that majesty it is it is here and i'm telling you there's a majesty here so thank you for because you had to put up with me too and i thank you for that but love on each other yes we you know we campaign but when the campaign

[03:29:15] is over it's time to govern thank you all god bless you all senators i one thing i did neglect

[03:42:35] to say in my gratefulness was madam clerk and since we're in the south all of y'all all of tara all of you all of you um were so gracious and in teaching me how to be how to be the lieutenant governor but in my position here how to preside thank you thank you for the training thank you for the times i've had to come back and say how do we do how do we do that again um because you

[03:43:15] didn't want me to not be able to serve them well i couldn't have done it without you that you cannot do this job without your institutional knowledge and i'm so grateful and i tell you my fellow elected

are also grateful and please come on up Madam President-elect I'd like to I don't think we've ever done this before we did this with the previous lieutenant governor because it was so historic that a black lieutenant

[03:43:55] governor was handing off to another black lieutenant governor which had never happened and that we are from two different parties made it doubly so that we wanted to record this and I want to record it too.

[03:44:10] So, just ceremonial. Madam President-Elect, Senator, now Senator Hashmi, I do hand over the gavel and it will be your turn and you'll have to take your noogies.

[03:44:43] Back to regular programming. Is there any other business to come before the Senate?

[03:44:59] Madam Clerk, Senator from Norfolk, Senator Williams Graves. - Thank you, Madam President.

[03:45:14] as the last day of your service I hope that you all will indulge me for a short moment of personal point of personal privilege so I rise for a point of personal privilege senator has the floor thank you today is historic but it is not new it stands the vote stands on the shoulders of women who saw of a woman who saw this moment long before it was politically comfortable to do so the former senator evonne b miller senator miller served the people of virginia in the general assembly

[03:45:50] for 28 years from 1984 until her passing in 2012 first in the house of delegates and then in this body and throughout her service she was guided by a deep belief that democracy is strongest when it is inclusive accountable and just but above all else senator miller was a woman of great faith until her passing in 2012 i personally cannot remember a time in our life in my life when i did not know who senator miller was in our community the old folks used to have a saying

[03:46:27] when people did things that they thought dead people wouldn't approve of they would say she must be rolling over in her grave well today madam president i want to be very clear the woman i know who loved the lord who was a hundred percent church of god in christ is not rolling over in her grave she is shouting in her grave because her living was not in vain there is also an old church song that says may the works i've done speak for me and even from her grave senator evonne miller's

[03:47:04] works are speaking loud and clear in this chamber long before the commonwealth was ready to confront the inequities of felony disenfranchisement senator miller pressed us to do so she introduced constitutional amendments to restore voting rights to individuals who completed their sentences first in 2007 then in 2008 and finally in 2010 session after session she advanced this cause knowing that the votes were not there yet but believing the moral argument was already present

[03:47:40] she was planting the seed of shade she was planting the seed of a shade tree that she would never sit under and the senator from hampton has taken on watering that seed to become the tree we see today giving returning citizens of the commonwealth the opportunity to enjoy the shade of the tree. Senator Miller understood something fundamental that redemption must be more than rhetoric and that citizenship would not be permanently denied should not be permanently

[03:48:16] denied once a debt to society has been paid. She believed that voting is not a privileged a privilege dispensed at the government's discretion but a right that affirms dignity responsibility and belonging so today as we vote for the second time to advance constitutional amendments sending it to the voters of virginia in the 2026 general election election we do so because of leaders like senator miller who refused to let this issue disappear she believed that

[03:48:52] those released from incarceration should have the opportunity to fully participate in democracy in the democracy that governs them. She laid the foundation, she framed the question, and she kept the faith. Faith in God, faith in people, and faith in the promise of a more just commonwealth. The amendment is not simply about correcting a policy. It is about completing a promise. It is about aligning our constitution with our values, and it is about honoring the legacy of persistence, courage, and spiritual conviction. Madam President,

[03:49:30] when Virginians cast their ballots in 2026, they will be voting on a measure rooted in decades of advocacy, prayerful endurance, and moral clarity. And when history tells its story, it will be clear that this moment belongs in no small part to Senator Yvonne B. Miller. Her work reminds us that some reforms don't pass when they are introduced but they pass because they were introduced.

[03:50:01] Today we voted in a way that honored her faith, her fight, and her faithful service and has moved the Commonwealth closer to the democracy Senator Yvonne bond miller believed was possible thank you madam president thank the senator senator from Richmond City senator Hashmi thank you madam president I rise for a point of personal privilege the senator may continue thank you madam president I want to first of all thank you so much for your years of public

[03:50:40] service your commitment to the citizens of the Commonwealth and the work that you have done to improve the lives of so many most especially the veterans community that you so dearly love. And I just want to thank all of the members of the Senate, my colleagues, my friends, my mentors, people who have been extraordinary in so many ways in challenging me to think differently, to think boldly, to think more deeply about the issues that impact all of our constituents' lives.

[03:51:14] I can't tell you what an extraordinary privilege it's been to be on the Senate floor, to be working with so many of you on the issues that we care about deeply. And what I've learned over the past six years is that it really doesn't matter which side of the aisle we are on when we're talking about the impacts that affect so many of our Virginians' lives, whether it's healthcare or education, the housing crisis that so many of our constituents face, or simply the issues of day-to-day living.

[03:51:51] We are working on issues collectively, and I know from speaking with so many of you how deeply, deeply you care about the communities you serve and the people you represent. It's been an honor to get to know so many of you personally, to learn about your children, to learn about the passions that you have, what's brought you into office, into the service that you provide to the Commonwealth.

[03:52:20] It's the same passion that has brought me here. And I know that every day when we come here, the majesty you spoke of, Madam President, is something that each of us face and feel as we come through the doors and as we do this work year after year. This is a bittersweet moment for me. I have absolutely loved the work on policy that I have done with each and every one of you and I so appreciate the trust that Virginia's voters have placed in each of us and I look forward to the next four years of service as we continue to do

[03:52:58] the work for which we have been elected thank you so much thank you madam president i thank the senator and lieutenant governor-elect madam clerk monday january 19 2026 the committee for courts

[03:53:33] to justice will meet at 8 a.m senate room a the committee on local government will meet at 8 30 a.m senate room b the education and health subcommittee on higher education will meet at 8:30 a.m.

Senate Room C. The Democratic caucus will meet 45 minutes before session in Senate Room 1 in the Capitol. The Republican caucus will meet 30 minutes before session in Senate Room 2 of the Capitol. And before I get to some reminders about tomorrow, on behalf of the staff, we thank you for your dedication and commitment to learning the intricacies

[03:54:12] standing up here because it is not easy and she's been a wonderful student and I know what they told you when you were elected to the house about me you can share that with them I'm not but we have enjoyed working with you and appreciate all your support now please listen closely tomorrow Saturday January 17th no guest or legislative assistance will be allowed to go to members offices in

[03:54:52] the GAB or their offices in the GAB it is locked down so unless you are a member and have your member pass you cannot go into that building so please remind your legislative assistants and tell them please not to call us that's just the law of the land tomorrow if you don't have your tickets they can be picked up from Rose Ramsey in the Senate clerk's office on the third floor.

[03:55:21] Explore our full archives anytime on the Senate of Virginia's YouTube channel at

[03:55:26] youtube.com/at symbol Senate of Virginia. This is the Senate of Virginia, Richmond,

[03:56:35] Virginia. Is there any other business to come before the Senate? Hearing none, chair calls on Madam President pro tempore the senator from Portsmouth, Senator

[03:57:13] Lucas. Somebody please mark the time. Madam President, I move that the Senate do now adjourn under your leadership until 10 30 a.m. tomorrow. Question is, shall the Senate adjourn until 10 30 a.m. tomorrow? All in favor of that motion, we'll say aye. Those opposed, no. The Senate now stands

[03:57:44] adjourn until 12 and 30 a.m. tomorrow. This has been a broadcast by the Senate of Virginia from Richmond, Virginia. Visit our YouTube channel for live meetings and session videos, previous recordings, and archival content at youtube.com forward slash at symbol Senate of Virginia.

[03:58:15] This is the Senate of Virginia, Richmond, Virginia, Chamber. Senate of Virginia thanks you for joining

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